

38 & 39 Vict.
c. 57.
53 & 54 Vict.
c. 48.

(Ireland) Act, 1875 (Amendment), Act, 1890, shall be substituted for any reference to the Pharmacy Act, 1868; and

- (b) A reference to the Pharmaceutical Society of Ireland shall be substituted for the reference to the Pharmaceutical Society of Great Britain.

Short title
and com-
mencement.

17.—(1) This Act may be cited as the Dangerous Drugs Act, 1920.

(2) This Act shall come into operation on the first day of September, nineteen hundred and twenty.

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## CHAPTER 47.

An Act to continue temporarily the office of Food Controller and to make further provision with respect to his powers, and for purposes in connexion therewith.

[16th August 1920.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Continuation  
of office of  
Food Con-  
troller.  
6 & 7 Geo. 5.  
c. 68.

1.—(1) Subject to the provisions of this Act, the provisions of the New Ministries and Secretaries Act, 1916, so far as they relate to the Food Controller or the Ministry of Food, shall, notwithstanding anything in that or any other Act, continue in force until the first day of September, nineteen hundred and twenty-two :

Provided that—

- (a) the purposes of the Ministry of Food shall, in lieu of the purposes specified in section three of the New Ministries and Secretaries Act, 1916, or in any other provisions relating to the purposes for or in relation to which any of the powers of the Food Controller may be exercised, be the maintenance and augmentation of the food supply of the country, and the regulation in the public interest of the treatment, distribution, and prices of food ; and

- (b) nothing in this section shall be deemed to continue any power of making regulations under the Defence of the Realm (Consolidation) Act, 1914.

Geo. 5. c. 8.

(2) The Food Controller shall, after the passing of this Act during the continuance of his office, have and exercise all the powers possessed by him, at the time of the passing of this Act, under the regulations referred to in the Schedule to this

Act, which regulations, so far as they relate to the powers of the Food Controller, shall, subject to the limitations set out in that Schedule, have effect as though set out in this Act, and shall cease to have effect as regulations made under any enactment relating to the Defence of the Realm.

Any orders made by the Food Controller under any of the said regulations and in force at the date of the passing of this Act shall, unless or until varied or revoked, continue in force and have effect as if made under the powers conferred by this Act.

(3) His Majesty may by Order in Council provide—

- (a) for the transfer of all or any of the powers of the Food Controller under this Act to some other Government Department or Departments if it appears to him that those powers could be more satisfactorily exercised by that Department or those Departments if so transferred; and
- (b) for the discontinuance of all or any of the powers of the Food Controller before the date fixed by this Act if it appears to him that the exercise of those powers is no longer necessary; and
- (c) on the cessation of the office of Food Controller and the Ministry of Food, for the vesting and transfer in and to any Government Department or Departments of any property, rights, and liabilities held, enjoyed, or incurred by the Food Controller.

(4) The Food Controller may sue and be sued by that name.

2.—(1) If after the passing of this Act any person is guilty <sup>Penalties.</sup> of an offence or a summary offence under any of the regulations specified in the Schedule to this Act or against any order continued by this Act, or that may be made under any of the said regulations, he shall be liable on conviction under the Summary Jurisdiction Acts to imprisonment with or without hard labour for a term not exceeding three months or to a fine not exceeding one hundred pounds or to both such imprisonment and fine, and the court by which he is convicted may, in any case, order that any goods or moneys in respect of which the offence has been committed, be forfeited :

Provided that a prosecution for any such offence shall not in England or Ireland be instituted except by or with the consent of the Attorney-General for England or Ireland, as the case may be, or by an officer of the police, or by a person acting under the authority of the Food Controller.

(2) The Defence of the Realm (Food Profits) Act, 1918, shall <sup>s 8 & 9 Geo. 5.</sup> continue in force during the continuance of the office of the Food Controller, and shall apply in relation to any order made by the Food Controller in pursuance of his powers for the time being in force. <sup>c. 9.</sup>

Power to  
regulate  
importation  
and exporta-  
tion of food.

3.—(1) The Food Controller may by order—

- (a) prohibit or regulate the export of any article of food where it appears to him necessary for the purpose of maintaining sufficient supplies of the article in the United Kingdom or of stabilising prices, or for the purpose of giving effect to any international arrangements for buying to which His Majesty's Government may be a party; or
- (b) prohibit or regulate the export of any article of food where the article or any ingredient thereof is subsidised; or
- (c) prohibit or regulate the import of any article of food into the United Kingdom, where it appears to him necessary for the efficient and economical distribution of the article, or for the purpose of facilitating purchases on behalf of His Majesty's Government at reasonable prices or of giving effect to any international arrangement for buying to which His Majesty's Government is a party :

Provided that an order under this section shall as soon as may be after it is made be laid before both Houses of Parliament, and, if an address is presented to His Majesty by either House within the next twenty days on which that House has sat after the order is laid before it praying that the order or any part thereof may be annulled, His Majesty in Council may annul the order or that part thereof, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

39 & 40 Vict.  
c. 36.

(2) This section and any order made thereunder shall be construed as one with the Customs (Consolidation) Act, 1876, and the enactments amending the same, and all the provisions of that Act and those enactments so far as they are applicable to the exportation or importation of prohibited goods shall apply accordingly.

(3) An order under this section may be revoked, varied or added to by a subsequent order.

Powers in  
relation to  
hops.

4.—(1) With a view to assisting the industry of hop growing in the United Kingdom to recover from the injury which it suffered during the war, the Food Controller shall, during the continuance of his office, have and exercise any powers in relation to hops which at the time of the passing of this Act were exercisable by him, and may by order prohibit or regulate the importation of foreign hops in such manner as may appear to him necessary, and the provisions of the last preceding section shall apply to any such order.

(2) An Order under this Act providing for the transfer of the powers of the Food Controller under this section to any other

Government Department or Departments may, notwithstanding anything in this Act, provide for the continuance of the power so transferred until the expiration of a period of five years from the passing of this Act, and in such case the provisions of this Act, so far as necessary, shall continue to have effect accordingly.

5. Without prejudice to the operation of section ten of the *Expenses. New Ministries and Secretaries Act, 1916*, any expenses of the *6 & 7 Geo. 5. Ministry of Food or any other Government Department under c. 68.* this Act, to such amount as may be sanctioned by the Treasury shall be paid out of moneys provided by Parliament.

6. This Act may be cited as the *Ministry of Food (Continuance) Short title. Act, 1920.*

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## SCHEDULE.

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Sections 1  
and 2.

### REGULATIONS.

Regulations 2B, 2F to 2J, inclusive, and 2JJJ of the *Defence of the Realm Regulations.*

### LIMITATIONS.

1. The Food Controller shall not, without the consent in England and Wales of the Minister of Agriculture and Fisheries, in Scotland of the Board of Agriculture for Scotland, or in Ireland of the Department of Agriculture and Technical Instruction for Ireland, make any order for the purpose of encouraging the cultivation of land in any manner, the keeping or breeding of any live stock or poultry, or the production of any farm or dairy produce.

2. Where any articles are requisitioned or acquired after the passing of this Act under the powers of the Food Controller, the compensation to be paid in default of agreement shall in each case be such compensation as may be determined to be reasonable by the arbitration of a single arbitrator appointed for the purpose by the Lord Chief Justice of England in England, by the Lord President of the Court of Session in Scotland, and by the Lord Chancellor in Ireland, and the arbitrator shall not be bound by any provisions contained in any of the said regulations as to the principles on which compensation or price is to be determined.

3. The powers of the Food Controller under Regulations 2B, 2F (2) and 2JJJ (except subsections (1) (c), (4), (5), and (6)) shall be exercised only where it appears to the Food Controller necessary or expedient for the purpose of distributing supplies in a more efficient manner or by reason of any shortage of supplies or of any other special circumstances.

4. The powers of the Food Controller under Regulation 2GG shall be exercised only in relation to flour and other mills to which that regulation applies at the time of the passing of this Act.

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